



JUSTIFICATION FOR OTHER THAN FULL AND OPEN COMPETITION

SECTION 1: IDENTIFICATION OF THE AGENCY AND THE CONTRACTING ACTIVITY

Department of State Contracting Activity	☒ Overseas Post Bamako
Requiring Activity	Extending Internet Service Provider contract.

SECTION 2: NATURE AND/OR DESCRIPTION OF THE ACTION BEING APPROVED

Approval is requested to extend current contract for 6 months. For the services described in Section 3 on behalf of the Requiring Activity.

Last day of this contract will be August 31st, 2025.

This contract is a Firm-Fixed-Price (FFP)

SECTION 3: DESCRIPTION OF SUPPLIES/SERVICES REQUIRED TO MEET THE AGENCY'S NEEDS

We are requesting a 6-month extension of our current contract (19ML2020C0002) with Orange Mali SA utilizing the authority of FAR 52.217-8 for a Dedicated VNET 2nd circuit with a 70 Mbps bandwidth.

The estimated value for the entire period (February 20, 2025 to August 19, 2025) is 88,012.59 USD.

SECTION 4: IDENTIFICATION OF THE STATUTORY AUTHORITY PERMITTING OTHER THAN FULL AND OPEN COMPETITION

This acquisition is conducted under the authority of 41 USC 3304, as implemented by FAR 6.3 and substantiated by the following:

☒ FAR 6.302-2 – Unusual and compelling urgency.

SECTION 5: DEMONSTRATION THAT THE PROPOSED CONTRACTOR'S UNIQUE QUALIFICATIONS OR THE NATURE OF THE ACQUISITION REQUIRES USE OF THE AUTHORITY CITED



Orange Mali SA is uniquely qualified to provide these services based upon the following:

There are two companies in Bamako, Mali, that meet the Department of State's requirements for internet providers regarding bandwidth and uptime. We currently use one of these companies as our primary Internet Service Provider and Orange is the secondary. According to Department of State regulations, our primary and secondary internet providers must be different companies, each with separate connections to the internet. Additionally, the current contract with Orange is the only way to satisfy our current requirements including the avoidance of a lapse in service until the follow-on award process is completed.

SECTION 6. DESCRIPTION OF EFFORTS TO ENSURE THAT OFFERS WERE SOLICITED FROM AS MANY POTENTIAL SOURCES AS IS PRACTICABLE, INCLUDING WHETHER A NOTICE WAS OR WILL BE PUBLICIZED AS REQUIRED BY FAR SUBPART 5.2 AND, IF NOT, WHICH EXCEPTION UNDER FAR 5.202 APPLIES

A synopsis for this action will not be issued due to the urgent and compelling justification which is an exception under FAR Subpart 5.2. This justification will be posted in accordance with FAR procedures.

SECTION 7. DETERMINATION BY THE CONTRACTING OFFICER THAT THE ANTICIPATED COST TO THE GOVERNMENT IS FAIR AND REASONABLE

The Contracting Officer has determined the anticipated 88,012.59 USD to the Government of the supplies/services covered by this J&A will be fair and reasonable based on market prices and current contract.

SECTION 8. DESCRIPTION OF THE MARKET RESEARCH CONDUCTED (SEE PART 10) AND THE RESULTS OR A STATEMENT OF THE REASON MARKET RESEARCH WAS NOT CONDUCTED

No market research has been conducted; we are requesting an extension on the current contract. Post intends to launch the new solicitation in time to have the new contract in place prior to the expiration of the 6-month extension period.

SECTION 9. ANY OTHER FACTS SUPPORTING THE USE OF OTHER THAN FULL AND OPEN COMPETITION

Without internet connectivity, the embassy and other designated areas may face challenges in communicating with officials, both within the embassy and with external stakeholders such as other government agencies, diplomatic missions, and local authorities. This could impede the timely dissemination of important information, directives, and updates, potentially affecting diplomatic relations and coordination efforts.



Furthermore, the absence of internet access may disrupt crucial online services and tools utilized by the embassy for visa processing, information sharing, security monitoring, and emergency communication. This could lead to delays, errors, or security vulnerabilities, potentially putting staff safety and operational efficiency at risk

Uninterrupted internet connectivity is a vital service required for the operations of the Embassy.

SECTION 10. LISTING OF THE SOURCES, IF ANY, THAT EXPRESSED, IN WRITING, AN INTEREST IN THE ACQUISITION

This JOFOC will be posted on SAM.gov as required.

SECTION 11. STATEMENT OF THE ACTIONS, IF ANY, THE AGENCY MAY TAKE TO REMOVE OR OVERCOME ANY BARRIERS TO COMPETITION BEFORE ANY SUBSEQUENT ACQUISITION FOR THE SUPPLIES OR SERVICES REQUIRED

During this extension of the current contract period, Post will start a new solicitation process and review the viability of issuing a competitive solicitation.

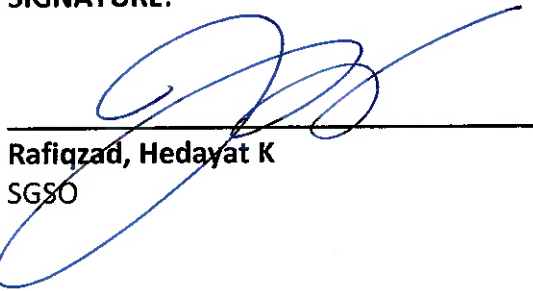


CERTIFICATIONS

CONTRACTING OFFICER CERTIFICATION (FAR 6.303-2(a)(12))

I certify that this submission is accurate to the best of my knowledge, and that it contains complete information necessary to enable other officials to make an informed recommendation for approval or disapproval.

SIGNATURE:



Rafiqzad, Hedayat K
SGSO

10 March 2025
Date

SIGNATURE:



Anderson, Rafeal D
Diplomatic Technology officer

10 March 2025
Date

SIGNATURE:



Austin, Tanya
Acting Management Officer

10 March 2025
Date

